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U.S. DISTRICT COURT
N.D. OF ALABAMA

IN THE UNITED STATES DISTRICT COURT
FOR THE NORTHERN DISTRICT OF ALABAMA
WESTERN DIVISION

KURT MORTON,	)	
	)	
Plaintiff,	)	
	)	Case No. 7:25-cv-01812 ACA
v.	)	
	)	**Opposed**
THE PENNSYLVANIA STATE UNIVERSITY BOARD OF TRUSTEES,	)	(Hon. Annemarie Carney Axon)
	)	
NEELI BENDAPUDI, In her official capacity as President of The Pennsylvania State University,	)	
	)	
JENNIFER WILKES, In her official capacity as Vice President for HR Chief & Human Resources Officer of The Pennsylvania State University,	)	
	)	
Defendants.	)	

BRIEF IN SUPPORT OF DEFENDANTS
THE PENNSYLVANIA STATE UNIVERSITY BOARD OF TRUSTEES,
NEELI BENDAPUDI, AND JENNIFER WILKES'
MOTION TO DISMISS COMPLAINT

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I. INTRODUCTION

Defendants The Pennsylvania State University Board of Trustees ("PSU Board"), Neeli Bendapudi ("President Bendapudi"), and Jennifer Wilkes ("Wilkes")[1] move to dismiss Plaintiff Kurt Morton's ("Plaintiff") Complaint pursuant to Federal Rule of Civil Procedure 12(b)(2), for lack of personal jurisdiction, and 12(b)(6), for failure to state a claim.

Plaintiff brings a single count under 42 U.S.C. § 1983 alleging that The Pennsylvania State University's ("Penn State" or the "University") alleged "Notice to Out-of-State Applicants" hiring policy (the "Policy")—which advises potential applicants that "Penn State will not consider remote work from some states"—violates the Privileges and Immunities Clause of Article IV, Section 2 ("the Clause"). Specifically, Plaintiff, an Alabama resident, alleges that he responded to an online job posting for an "Online/Remote" eligible Quality Assurance Analyst position at Penn State, and he received "an automated rejection" email. *Compl.*, ¶¶ 13-15. He further alleges that the "only apparent disqualifying factor [for Plaintiff's application denial] was Plaintiff's Alabama residency." *Id.*, ¶¶ 16-17.

Plaintiff's novel and unsupported legal theory seems to contend that employers such as Penn State are *required* to be 50-state employers and hire

[1] Defendants President Bendapudi and Wilkes are referred to herein collectively as the "Individual Defendants." Defendant PSU Board and the Individual Defendants are referred to herein collectively as "Defendants."

applicants from all 50 states—thereby requiring them to undertake the significant burden of monitoring and complying with the myriad of state laws from every state in which any of its employees reside—despite the fact that Penn State is a Pennsylvania state-related institution with all of its campuses located in Pennsylvania. There is simply no support for Plaintiff's position in the law.

Based on the above, Plaintiff has sued the PSU Board, the University's President, and its Vice President for Human Resources & Chief Human Resources Officer seeking declaratory and injunctive relief. Plaintiff's Complaint is legally and factually insufficient.

First, as explained below and in the accompanying Declarations of Sara F. Thorndike, Senior Vice President for Finance and Business/Treasurer ("Thorndike Decl."), President Bendapudi ("Bendapudi Decl."), and Wilkes ("Wilkes Decl.") there is no basis to confer personal jurisdiction in Alabama over any of the Defendants. None of the Defendants have sufficient contacts with Alabama to confer general or specific jurisdiction over them here. Additionally, even if such requisite contacts existed (which they do not), this case should be dismissed for lack of personal jurisdiction because exercising jurisdiction would offend traditional notions of fair play and substantial justice.

Second, even if personal jurisdiction existed here (it does not), Plaintiff's purported Privileges and Immunities claim fails under Rule 12(b)(6) for *three*

reasons. As a preliminary matter, an individual does not have a "fundamental right" to direct public employment by a state actor such as Penn State under the Clause—that is, Penn State is not prohibited from distinguishing between residents and nonresidents in hiring, and therefore the Complaint does not plausibly allege that the Policy burdens a fundamental privilege protected by the Clause. Next, even if the Policy concerned a protected privilege or fundamental right, the Policy does not violate the Clause because its hiring limitation is supported by substantial reasons, including avoiding overly-burdensome monitoring and compliance with numerous applicable state laws, regulations, and oversight requirements while maintaining efficiency based on Penn State's limited resources. Finally, Plaintiff's generalized allegations of discrimination against residents of Alabama are conclusory, unsupported by well-pleaded facts, and fail to state with specificity any facts that tie each defendant to the alleged violative conduct. Ultimately, Plaintiff's Complaint overreaches and fails to present a valid legal claim. It relies on speculative arguments and attempts to extend legal doctrines beyond their established limits.

For these reasons, and all the reasons discussed below, this case should be dismissed with prejudice in its entirety.

II. FACT BACKGROUND

The Board of Trustees

The Board of Trustees of Penn State is the corporate body established by the University's Charter with overall responsibility for the governance and welfare of Penn State and all interests pertaining thereto.[2] In the exercise of its responsibilities, the Board delegates day-to-day management and control of Penn State to the President, with certain reserved powers as set forth in the University's Bylaws. The Board of Trustees consists of 38 members, which includes 36 voting members and two non-voting members. Thorndike Decl., ¶ 4. The Board holds its meetings in University Park, Pennsylvania, and not in Alabama. *Id.*, ¶ 5. None of the members of the Board reside or work in Alabama. *Id.*, ¶ 6

Penn State

Penn State is a state-related institution of higher education and an instrumentality of the Commonwealth. Thorndike Dec., ¶ 3; 24 P.S. § 2510-503(6). Penn State was originally chartered by an act of the General Assembly of the Commonwealth of Pennsylvania ("the Act") on February 22, 1855. Thorndike Dec., ¶ 3; 24 P.S. § 2531. In 1862, the institution was designated by the Pennsylvania Legislature as the institution in Pennsylvania to receive the benefits of the Act. *Id.*

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[2] Penn State Office of the Board of Trustees, Role of the Board of Trustees in University Governance, last accessed on January 20, 2026, *available at* https://trustees.psu.edu/about/.

Penn State is a resident of Pennsylvania. *Id*., ¶ 21. It maintains its offices and principal place of business in University Park, Pennsylvania, which is located in Centre County, Pennsylvania, where all of Penn State's central administrative executives and offices are located. *Id.* Penn State's development and maintenance of its administrative policies is handled primarily out of the University Park campus. *Id*., ¶ 7.

Penn State is not incorporated in Alabama, and it is not a registered foreign non-profit corporation in Alabama. Thorndike Dec., ¶¶ 15-16. Penn State does not have a physical bank account in Alabama, and it does not have charitable solicitation registration or a charitable annuity registration in Alabama. *Id.*, ¶ 20.

Penn State does not own real estate or have any leases of office space in Alabama, and it has no campuses or offices in Alabama. *Id.*, ¶¶ 17-18. It has a total of 24 campuses across approximately 23,000 acres in Pennsylvania. *Id.*, ¶ 8. As of Fall 2025, throughout its campuses, Penn State employs approximately 19,740 full-time faculty and staff and approximately 22,246 part-time faculty and staff for a total approximate employee count of 41,986. *Id*. Of these employees, only 4 list a primary work state as Alabama. *Id*. Accordingly, the percentage of employees working and residing in Alabama is approximately 0.0095%. Thorndike Dec., ¶ 8.

Penn State is a national and international university and regularly takes actions that are typical of such institutions. *Id.*, ¶ 11. For example, Penn State engages in the

nominal contacts of recruiting students and student-athletes across the United States and maintains a website that is accessible across the world. *Id.* As of Fall 2025, there are over 72,000 undergraduate students at Penn State, with nearly 43,000 of those students at the University Park campus. *Id.*, ¶ 9. Last year, Penn State had just over 150 applications from Alabama students, with only 8 enrolling at Penn State. *Id.*, ¶ 13. Penn State also offers an online campus named Penn State World Campus. *Id.*, ¶ 14. However, only 92 out of 17,200 students enrolled in Fall 2025 World Campus courses have a permanent home address in Alabama. Thorndike Dec., ¶ 14.

The Individual Defendants

President Bendapudi was appointed president of Penn State in 2022. Bendapudi Dec., ¶ 1. She is responsible for generally overseeing Penn State's modern land-grant mission of teaching, research, and public service across Pennsylvania and the University's online Penn State Work Campus. *Id.* President Bendapudi also serves as an ex-officio non-voting member of the PSU Board. *Id.*

Wilkes has served as Vice President for Human Resources and Chief Human Resources Officer at Penn State since 2022. Wilkes Dec., ¶ 1. Wilkes is responsible for Penn State's university-wide human resources strategy, and she leads its efforts in recruitment, compensation, labor and employee relations, benefits, and talent management. *Id.* She also manages risk and compliance, change management, and performance management. *Id.* Wilkes serves on the University President's Council

and provides leadership across all human resources departments, fosters strategic collaborations, and builds partnerships across academic and administrative units. *Id.*

President Bendapudi's and Wilkes' offices are located in University Park, Pennsylvania. Bendapudi Dec., ¶ 7; Wilkes Dec., ¶ 6. They are both residents of and domiciled in Pennsylvania. Bendapudi Dec., ¶ 6; Wilkes Dec., ¶ 5. Neither Individual Defendant has regular or substantial contacts with Alabama, and they do not regularly do or solicit business, or engage in any other persistent course of conduct in Alabama. Bendapudi Dec., ¶¶ 8, 11; Wilkes Dec., ¶¶ 7, 10. They do not own, rent, or possess any real property in Alabama nor have they personally entered into contracts in Alabama. Bendapudi Dec., ¶¶ 9-10; Wilkes Dec., ¶¶ 8-9. They have not received income from, or paid taxes in, Alabama during any relevant time and have never personally maintained bank accounts there. Bendapudi Dec., ¶¶ 12-13; Wilkes Dec., ¶¶ 11-12. Neither President Bendapudi nor Wilkes has ever met or communicated with Plaintiff. Bendapudi Dec., ¶ 15; Wilkes Dec., ¶ 14.

Plaintiff's Allegations

Plaintiff is a resident of Northport, Alabama. *Compl.*, ¶ 8. He submitted an application in response to an online job posting at Penn State for the position of Quality Assurance Analyst on September 10, 2025. *Id.*, ¶¶ 13-14. The alleged job posting attached as Exhibit A to Plaintiff's Complaint provides that the position was

"Online/Remote" eligible and that "[a]pproval of remote and hybrid work is not guaranteed regardless of work location." Ex. A. to *Comp.*, 2.

Plaintiff alleges that, on September 16, 2025, he received an automated, system-generated, rejection email from Penn State. *Compl.*, ¶ 15. The email stated: "We appreciate your interest in [the Quality Assurance Analyst position] at Penn State. After reviewing applications, we have elected not to move you forward in the hiring process for this position. . . ." *Id.*; Ex. C to *Compl.*

Plaintiff alleges that "Defendants maintain a written 'Notice to Out of State Applicants' policy," (the "Policy"), which states:

> Approval of remote and hybrid work is not guaranteed. Different factors are considered when evaluating such requests, including, but not limited to, the duties of the position and the University's ability to accommodate the request. Please note that Penn State will not consider remote work from some states, and countries other than the United States will not be considered.
>
> Hiring in the following locations will not be considered:
>
> **1.** For both full-time and part-time positions: Alabama, Alaska, Arkansas, Idaho, Iowa, Kansa, Louisiana, Maine, Massachusetts, Michigan, Mississippi, Montana, Nebraska, Nevada, New Mexico, North Dakota, Oklahoma, Oregon, Rhode Island, South Dakota, Utah, Vermont, Wyoming.

Compl, ¶ 16; Ex. D to *Compl.* Plaintiff alleges that Defendants "enforce[ed] this policy against" him in denying his application. *Compl.*, ¶¶ 17-18.

On October 17, 2025, Plaintiff commenced this action *pro se*. *See Compl.* He seeks declaratory relief declaring that the Policy, "as applied to remote employment, violates the Privileges and Immunities Clause of Article IV, § 2." *Compl.*, Prayer for Relief. He also seeks injunctive relief "[p]ermanently enjoin[ing] Defendants . . . from enforcing the policy against Plaintiff and other Alabama residents." *Id.*

III. ARGUMENT

a. Plaintiff's Complaint Should Be Dismissed Because This Court Lacks Personal Jurisdiction Over Each Defendant and Penn State

i. Legal Standard for Motion to Dismiss for Lack of Personal Jurisdiction under Rule 12(b)(2)

A court must have personal jurisdiction over each defendant because a "court without personal jurisdiction is powerless to take further action." *World Media All. Label, Inc. v. Believe SAS*, No. 24-12079, 2025 WL 2102017, at *2 (11th Cir. July 28, 2025) (citation omitted). A plaintiff "bears the initial burden of alleging in the complaint sufficient facts to make out a prima facie case of jurisdiction" over each defendant. *Pennymac Loan Servs., LLC v. Brown*, No. 2:24-CV-00635-RDP, 2025 WL 685216, at *2 (N.D. Ala. March 3, 2025). "Vague and conclusory allegations do not satisfy this burden." *World Media*, 2025 WL 2102017, at *2.

When a defendant challenges personal jurisdiction, the plaintiff has the twin burdens of establishing that personal jurisdiction comports with (1) the forum state's long-arm provision and (2) the requirements of the Fourteenth Amendment's due

process clause. *See Olivier v. Merritt Dredging Co.*, 979 F.2d 827, 830 (11th Cir. 1992), *cert. denied*, 507 U.S. 983 (1993); *Horizon Aggressive Growth, L.P. v. Rothstein–Kass, P.A.*, 421 F.3d 1162, 1166 (11th Cir. 2005). Alabama's long-arm provision authorizes the assertion of personal jurisdiction to the limits of the United States Constitution. *See* Ala. R. Civ. P. 4.2(b); *Mutual Service Ins. Co. v. Frit Industries, Inc.*, 358 F.3d 1312, 1319 (11th Cir. 2004); *see also Smith v. Brakefield*, No. CV 24-0013-TFM-MU, 2024 WL 3330985, at *3–4 (S.D. Ala. May 20, 2024), *report and recommendation adopted as modified*, No. 2:24-CV-13-TFM-MU, 2024 WL 3274775 (S.D. Ala. July 2, 2024) (citation omitted) (explaining that § 1983 claims require that both "assertion of jurisdiction and service of process be determined by state amenability standards, or the long-arm statute"). Thus, Plaintiff's burden requires proof that personal jurisdiction over each defendant meets the requirements of federal due process. *See Olivier*, 979 F.2d at 830.

Due process requires: (1) the defendant have "certain minimum contacts" with the forum state, and (2) if such minimum contacts exist, that the exercise of jurisdiction over the defendant must not offend "traditional notions of fair play and substantial justice." *Burnham v. Super. Ct.*, 495 U.S. 604, 618 (1990) (*quoting Int'l Shoe Co. v. State of Wash., Office of Unemployment Comp. & Placement*, 326 U.S. 310, 316 (1945)); *see also SEC v. Carrillo*, 115 F.3d 1540, 1542 (11th Cir. 1997). To satisfy the minimum contacts requirement, Plaintiff must show that each Defendant

had either general or specific contacts with Alabama. *Helicopteros Nacionales de Colombia, S.A. v. Hall,* 466 U.S. 408, 414-15 and nn. 8-9 (1984) (citations omitted).

General contacts, which give rise to general personal jurisdiction, are those that are unrelated to the cause of action. *Id.* These contacts must be both "continuous and systematic" with the forum state and substantial. *Id.* at 416. The test "is whether that corporation's affiliations with the State are so continuous and systematic as to render [it] essentially at home in the forum State." *Daimler AG v. Bauman*, 571 U.S. 117, 127 (2014) (quotation omitted); *see also Pennymac Loan Servs.,* 2025 WL 685216, at *4 (*quoting Daimler*, 571 U.S. at 127). Thus, general jurisdiction analysis "calls for an appraisal of a corporation's activities in their entirety, nationwide and worldwide. A corporation that operates in many places can scarcely be deemed at home in all of them." *Daimler*, 571 U.S. at 139, n. 20. "[O]nly a limited set of affiliations with a forum will render a defendant amenable to all-purpose jurisdiction there." *Id.* at 137. A corporation's **place of incorporation** and its **principal place of business** are the "paradigm" forums in which it is "at home." *Carmouche v. Tamborlee Mgmt., Inc.*, 789 F.3d 1201, 1204 (11th Cir. 2015) (emphasis added) (*quoting Daimler*, 571 U.S. at 137). "For an individual, the paradigm forum for the exercise of general jurisdiction is the individual's **domicile**." *Daimler*, 571 U.S. at 137 (emphasis added); *Goodyear Dunlop Tires Operations, S.A. v. Brown*, 564 U.S. 915, 924 (2011).

Alternatively, contacts supporting specific jurisdiction consist of a defendant's contacts with the forum state that are related to the cause of action. *See Burger King Corp. v. Rudzewicz*, 471 U.S. 462, 472–75 (1985). Such contacts must rise to a level to cause the defendant to anticipate being haled into court in the forum state. *See id.*

ii. The Court Lacks *General* Jurisdiction Over Defendants and Penn State

1. This Court Lacks General Jurisdiction Over the PSU Board and Penn State

Penn State is a state-related institution of higher education and an instrumentality of the Commonwealth of Pennsylvania, organized and existing under the Not for Profit Corporation Laws of Pennsylvania. Thorndike Decl., ¶ 3. Penn State is a resident of Pennsylvania and maintains its offices and principal place of business in University Park, Pennsylvania, where all of Penn State's central administrative executives and offices are located. *Id.*, ¶ 21. With regard specifically to the PSU Board, it holds its meetings in Pennsylvania, not Alabama, and none of the members of the Board reside or work in Alabama. *Id.*, ¶¶ 5-6. Additionally, Penn State's development and maintenance of its administrative policies is handled primarily out of the University Park campus. *Id.*, ¶ 7.

Penn State is not incorporated in Alabama and is not a registered foreign non-profit corporation there. *Id.*, ¶¶ 15-16. Penn State does not have a physical bank account, charitable solicitation registration, or charitable annuity registration in

Alabama. *Id.*, ¶ 20. It does not own real estate or lease office space in Alabama. Thorndike Decl., ¶¶ 17-18. Penn State has a total of 24 campuses across approximately 23,000 acres in Pennsylvania, but it has no campuses or offices in Alabama. *Id.*, ¶ 8.

As of Fall 2025, throughout its campuses, Penn State employs approximately 19,740 full-time and approximately 22,246 part-time faculty and staff for a total approximate employee count of 41,986. *Id.*, ¶ 8. Of those employees, only 4 list a primary work state as Alabama. *Id.* Accordingly, the percentage of employees working and residing in Alabama is approximately **0.0095%**. *Id.*, ¶ 8.

The PSU Board's and Penn State's affiliations with Alabama are not "so continuous and systematic as to render them essentially at home" there. *Daimler*, 571 U.S. at 127. First, Penn State is incorporated and its principal place of business is in Pennsylvania, Thorndike Decl., ¶ 21 which are the "paradigm" forums in which a corporation is "at home." *Carmouche*, 789 F.3d at 1204 (*quoting Daimler*, 571 U.S. at 137); *see also Jackson v. Bd. of Supervisors of Louisiana State Univ. & Agric. & Mech. Coll.*, No. 3:22-CV-00111-TES, 2023 WL 2602508, at *1, n.1 (M.D. Ga. Mar. 22, 2023) (explaining that "[g]eneral jurisdiction exists when the defendant is at home in the forum state—*i.e.*, he is domiciled there," and, "[c]learly, LSU is only subject to general jurisdiction in Louisiana.").

Additionally, a university's enrollment of students, marketing to potential students, and fundraising in a forum state are insufficient to confer general jurisdiction over it. *Jackson*, 2023 WL 2602508, at *1, n.1 (holding that "LSU does have contacts with the State of Georgia—as any other large university in America would. But numerous courts have held that such contacts are not 'continuous and systematic' enough so as to confer personal jurisdiction on a court in that state"); *Austin v. Georgetown Univ.*, No. 19-05631, 2021 WL 2953231, at *4 (N.D. Cal. July 14, 2021), *aff'd*, No. 21-16191, 2023 WL 3580348 (9th Cir. May 22, 2023) ("long-standing recruiting, academic exchange, and fundraising activities in the forum by a non-forum resident university are inadequate to confer general jurisdiction."); *Gehling v. St. George's Sch. of Med., Ltd.*, 773 F.2d 539, 541–43 (3d Cir. 1985) (holding that there is no general jurisdiction where a college enrolled 6% of its students from forum state, received several hundred thousand dollars of tuition from residents of forum state, toured cities in forum state, and established a joint international program with a forum state college); *Richards v. Duke Univ.*, 480 F. Supp. 2d 222, 230 (D.D.C. 2007) (holding that university's recruiting activities and small number of adjunct faculty residing in forum is insufficient to establish personal jurisdiction").

Finally, the *Daimler* analysis requires the Court to examine the contacts in the forum state as it relates to nationwide and worldwide contacts. Under that standard,

Penn State's marginal contacts with Alabama are insufficient to establish general jurisdiction. *See BNSF Ry. Co. v. Tyrrell*, 581 U.S. 402, 414 (2017) (holding no basis for Montana to exercise general jurisdiction over foreign corporation with about 6% of its total track mileage and less than 5% of its total work force employed in Montana, and maintained only one of its 24 automotive facilities in Montana).

Accordingly, this Court lacks general jurisdiction over the PSU Board and Penn State.

2. This Court Lacks General Jurisdiction Over the Individual Defendants

The Court also lacks general jurisdiction over the Individual Defendants. "For an individual, the paradigm forum for the exercise of general jurisdiction is the individual's domicile." *Daimler*, 571 U.S. at 137; *Goodyear*, 564 U.S. at 924.

Here, President Bendapudi and Wilkes are both residents and domiciled in Pennsylvania. Bendapudi Dec., ¶ 6; Wilkes Dec., ¶ 5. For this reason alone, general jurisdiction in Alabama is lacking. Moreover, neither Individual Defendant maintains continuous and systematic contacts with Alabama. Both their offices are located in University Park, Pennsylvania. Bendapudi Dec., ¶ 7; Wilkes Dec., ¶ 6. Neither has regular or substantial contacts with Alabama, and they do not regularly do or solicit business, or engage in any other persistent course of conduct in Alabama. Bendapudi Dec., ¶¶ 8, 11; Wilkes Dec., ¶¶ 7, 10. They do not own, rent, or possess any real property in Alabama nor have they personally entered into any

contracts there. Bendapudi Dec., ¶¶ 9-10; Wilkes Dec., ¶¶ 8-9. They have not received income from, or paid taxes in, Alabama during any relevant time period and have never personally maintained bank accounts in Alabama. Bendapudi Dec, ¶¶ 12-13; Wilkes Dec., ¶¶ 11-12. Neither defendant has ever met or communicated with Plaintiff. Bendapudi Dec., ¶ 15; Wilkes Dec., ¶ 14.

Based on the above, this Court lacks general jurisdiction over the Individual Defendants. *See Butler v. Beer Across Am.*, 83 F. Supp. 2d 1261, 1266 (N.D. Ala. 2000) (holding court lacked general jurisdiction where defendants "are not registered to do business in Alabama;" "own no property;" "maintain no offices;" and "have no agents in Alabama"); *Smith*, 2024 WL 3330985, at *3–4 (dismissing claims for lack of personal jurisdiction where defendant "lives in the state of Mississippi; she does not own, use, lease, or possess any real property within the state of Alabama; and she does not have a telephone number, bank account, or mailing address in the state of Alabama."); *Clemons v. Cohen*, No. CV 21-0485-JB-MU, 2022 WL 2032299, at *4–5 (S.D. Ala. April 15, 2022), *report and recommendation adopted*, No. CV 21-0485-JB-MU, 2022 WL 1997627 (S.D. Ala. June 6, 2022) (dismissing for lack of personal jurisdiction where defendants were residents of Pennsylvania "and all actions attributed to them occurred in Pennsylvania").

iii. The Court Lacks *Specific* Jurisdiction Over Defendants

The Court also lacks specific jurisdiction over Defendants. To constitute minimum contacts for specific jurisdiction, Plaintiff must show that each Defendant's contacts with Alabama satisfy three criteria:

> (a) the contacts must be **related to the plaintiff's cause of action or have given rise to it**;
> (b) the contacts must involve **some act by which the defendant purposefully availed itself** of the privilege of conducting activities with the forum; ***and***
> (c) the contacts must be such that the defendant **should reasonably have anticipated being haled into court in the forum**.

See Carrillo, 115 F.3d at 1542 (emphasis added).

Plaintiff cannot meet this burden. With regard to the PSU Board, Plaintiff's sole allegations are that it is Penn State's "governing body" that "possess ultimate authority to approve, adopt, and maintain University-wide policies, including the residency restriction" and that it "promulgated and maintains the challenged policy." *Compl.*, ¶¶ 9, 26. Similarly, as for President Bendapudi, Plaintiff's sole allegations are that "she is responsible for approving and enforcing University-wide policies, including the residency restriction." *Id.*, ¶¶ 10, 19, 26. Plaintiff likewise alleges only that Wilkes "oversees hiring and recruiting policies, including implementation of the exclusionary policy." *Id.*, ¶¶ 11, 20, 27. In sum, Plaintiff alleges that Defendants approved or implemented the Policy at Penn State—nothing more. However, as noted above, development and maintenance of Penn State's administrative policies

is handled primarily out of the University Park campus *in Pennsylvania*. Thorndike Dec., ¶ 7. Plaintiff makes no showing whatsoever that Defendants had any contacts with Alabama, let alone that any defendant "purposefully avail[ed] itself of the privilege of conducting activities with" Alabama or "should reasonably [have] anticipate[d] being haled into court" there. *Carrillo*, 115 F.3d at 1542.

In his Complaint, Plaintiff purports to base "personal jurisdiction" over all Defendants on three allegations: "[1] Defendants advertised the job in this district, [2] Plaintiff applied from this district, and [3] the injury, exclusion from employment, was suffered here." *Compl.*, ¶ 7 (alteration added). Each of Plaintiff's purported grounds is insufficient to support specific personal jurisdiction.

First, Plaintiff's allegation that "Defendants advertised the job in" Alabama is unsupported. Rather, Penn State issued the job posting from Pennsylvania, and Plaintiff applied in response to a national online job posting on a third-party website, "HigherEdJobs." *See* Ex. A to *Compl*. Defendants did not target or purposefully avail themselves to Alabama through their nationwide job posting. Indeed, a passive online posting accessible to the entire country is insufficient to support specific jurisdiction. *Butler*, 83 F. Supp. 2d at 1268 ("In personam jurisdiction is improper, however, when the nonresident defendant has established a passive Internet site, which acts as little more than an electronic billboard for the posting of information."); *Andy's Music, Inc. v. Andy's Music, Inc.*, 607 F. Supp. 2d 1281, 1291

(S.D. Ala. 2009) ("the maintenance of an internet site listing its owner's basic business details does not independently support any court's personal jurisdiction over a defendant."); *Ex parte Harrison*, 7 So. 3d 1020, 1027–28 (Ala. Civ. App. 2008) (citations omitted) (holding that online advertisement for car sale "did not constitute a purposeful contact with Alabama because, like an advertisement placed in a nationally delivered newspaper or journal, it was not directed at Alabama specifically and the advertisement was passive in nature").

Furthermore, Penn State included notice and a link to its alleged Policy in the job posting, *see* Ex. A to *Compl.*, p. 2, which expressly advised that hiring in Alabama would "not be considered." Ex. D to *Compl*. It cannot be said that the job posting advising applicants that hiring in Alabama would *not* be considered somehow *targeted* its advertising at Alabama residents. If anything, it was the opposite. *See Moore v. Cecil*, 109 F.4th 1352, 1363–65 (11th Cir. 2024) (upholding lack of personal jurisdiction dismissal where there was no evidence that online tweets were "intended to target an Alabama audience as opposed to . . . a national audience generally"). Indeed, a significant purpose of the state hiring limitations in the Policy was precisely to *avoid* Penn State subjecting itself to the laws of various states, including Alabama.

Second, Plaintiff's allegation that he "applied from this district" cannot support specific jurisdiction because Plaintiff's "[u]nilateral acts within a forum state

are insufficient to establish personal jurisdiction over a non-resident defendant." *Pennsylvania Nat'l Mut. Cas. Ins. Co. v. 3D Air Servs., Inc.*, No. 2:20-CV-43-GMB, 2020 WL 6743326, at *5 (N.D. Ala. Nov. 17, 2020) (*citing Burger King*, 471 U.S. at 475). "[I]t is important to remember that the conduct at issue is that of the defendants. No plaintiff can establish jurisdiction over a defendant through his own actions." *Pennsylvania Nat'l*, 2020 WL 6743326, at *3 (*quoting Ruiz de Molina v. Merritt & Furman Ins. Agency, Inc.*, 207 F.3d 1351, 1356 (11th Cir. 2000)).

Third, Plaintiff's allegation that his alleged injury was suffered in Alabama likewise cannot support specific jurisdiction. *See Walden v. Fiore*, 571 U.S. 277, 290 (2014) ("mere injury to a forum resident is not a sufficient connection to the forum" and "[t]he proper question is not where the plaintiff experienced a particular injury or effect but whether the defendant's conduct connects him to the forum in a meaningful way"); *Moore*, 109 F.4th at 1363 (holding that plaintiff's allegation that "he suffered harm in Alabama is not enough to establish personal jurisdiction").

Finally, a single, automated e-mail advising Plaintiff that his application was denied does not establish specific jurisdiction. First, there is no allegation that any of the Defendants in this case *sent* that e-mail, which Plaintiff alleges was an "automated," system-generated e-mail. *Compl.*, ¶ 15; Ex. C to *Compl*. In any event, a single, automated e-mail response is insufficient to establish that Defendants purposefully availed themselves of the privilege of conducting activities in Alabama

and that Defendants should reasonably have anticipated being haled into court in Alabama. *Standard Metals Processing, Inc. v. Flechner*, No. 4:14-CV-00998-SGC, 2015 WL 1407751, at *1 (N.D. Ala. Mar. 26, 2015) (dismissing case for lack of jurisdiction and holding that nine emails to Alabama, including five emails that addressed "the subject of this lawsuit" were insufficient to establish specific jurisdiction); *Heath v. Est. of Heath*, No. 2:14-CV-610-JHH, 2014 WL 3809965, at *6 (N.D. Ala. July 30, 2014) (dismissing for lack of personal jurisdiction where "the only actual act in furtherance of a conspiracy that Plaintiff advances for subjecting either [defendant] to the specific personal jurisdiction of this court is [defendant] sending 'Plaintiff an email'"); *see also Future Tech. Today, Inc. v. OSF Healthcare Sys.*, 218 F.3d 1247, 1251 (11th Cir. 2000) (holding no personal jurisdiction based on limited telephone contact to forum state and no visit to forum state).

Accordingly, the Court lacks specific jurisdiction here.

iv. Exercise of Jurisdiction over Defendants and Penn State Offends Traditional Notions of Fair Play and Substantial Justice

Even *if* Plaintiff could show that minimum contacts with Alabama exist to support general or specific jurisdiction in this case (which he cannot), the Court lacks

personal jurisdiction because exercising jurisdiction over Defendants and Penn State would offend traditional notions of fair play and substantial justice.[3]

Courts consider five factors in evaluating fairness: (1) the burden on the defendant; (2) the forum State's interest in adjudicating the dispute; (3) the plaintiff's interest in obtaining convenience and effective relief; (4) the interstate judicial system's interest in obtaining the most effective resolution of the controversies; and (5) the shared interest of the several states in furthering fundamental substantive policies. *Burger King Corp*, 471 U.S. at 478; *Butler*, 83 F. Supp. 2d at 1268. The burden on Defendants is "always a primary concern." *Ex parte M.E.J.*, 392 So. 3d at 67–69. "The relationship between the defendant and the forum must be such that it is 'reasonable ... to require the [defendant] to defend the particular suit which is brought there.'" *Id.* at 67–69 (citation omitted). These factors establish that exercising jurisdiction here would offend fair play and substantial justice.

Forcing Defendants to litigate this action in Alabama, while Penn State and each of the Defendants—including its Board, President, and Chief Human Resources Officer who have substantial management and oversight duties at Penn State's largest campus and principal place of business, *see* Bendapudi Dec. ¶ 1, Wilkes Dec., ¶ 1—are located in Pennsylvania and have little to no contacts with Alabama, would

[3] Only after a plaintiff has shown that defendants purposefully established minimum contacts with Alabama is the Court required to consider whether exercising jurisdiction would support fair play and substantial justice. *See Francosteel Corp. v. M/V Charm*, 19 F.3d 624, 627 (11th Cir. 1994).

be a significant burden. *Butler*, 83 F. Supp. 2d at 1268 (holding that "considerations of 'fair play and substantial justice' do not support personal jurisdiction over the nonresident defendants," and "the difficulties of geography still impose a not insubstantial burden on a defendant seeking to mount an effective defense against a potentially substantial claim in a remote jurisdiction to which that party has no real ties").

Second, Alabama has little interest in adjudicating this dispute regarding the Policy and hiring decisions made in Pennsylvania. *See Future Tech.*, 218 F.3d at 1251 (holding that "this Court cannot conclude a strong state interest in haling people into Florida courts from all over the country for entering into one service arrangement, over the telephone without ever setting foot in Florida"). To hold otherwise would mean that *every* state from where Penn State decides not to hire employees would have a dominant interest in overseeing this dispute.

Third, any interest of Plaintiff in obtaining convenience and effective relief is far outweighed by the burden on Defendants. *See id.* (explaining that "[a]ny plaintiff's interest in obtaining convenient and effective relief is always present," but personal jurisdiction was not supported where "the burden on defendant in defending a lawsuit in Florida would be great").

Finally, the fourth and fifth factors—"(4) the interstate judicial system's interest in obtaining the most effective resolution of the controversies" and "(5) the

shared interest of the several states in furthering fundamental substantive policies" do not support exercising personal jurisdiction here. The most efficient and effective forum, if any, would be Pennsylvania, where the majority of the parties and evidence is located, and where the Policy was established and enforced.

Accordingly, even if minimal contacts existed in this case to establish personal jurisdiction (which they do not), exercising personal jurisdiction would be improper because it would offend traditional notions of fair play and substantial justice.

b. <u>Plaintiff Fails to Allege Facts to Support a Claim that Penn State's Hiring Policy Violates the Privileges and Immunities Clause</u>

i. Legal Standard for Motion to Dismiss Under Rule 12(b)(6)

To survive a Rule 12(b)(6) motion, a complaint must contain sufficient factual matter, accepted as true, to state a claim for relief that is plausible on its face. *Newbauer v. Carnival Corp.*, 26 F.4th 931, 934 (11th Cir. 2022) (*citing Ashcroft v. Iqbal*, 556 U.S. 662, 678 (2009)). Although the Court must accept well-pled factual allegations as true, it is not required to accept a plaintiff's legal conclusions. *Id.* The plausibility standard requires more than a sheer possibility that a defendant has acted unlawfully. *Id.* Conclusory allegations that do not rise above the speculative level, labels and conclusions, and a formulaic recitation of the elements of a cause of action do not suffice. *Id.*

A plaintiff must allege "specific facts, concerning each defendant, indicating that each defendant has violated" plaintiff's constitutional rights. *Spencer v. City of*

Eutaw, Alabama, No. 7:08-CV-00043-LSC, 2008 WL 11380073, at *13 (N.D. Ala. Aug. 14, 2008) (citing *Mercer v. Hammonds*, 134 F.3d 1066, 1070–71 (11th Cir. 1998)); *see Casado v. Hill*, No. 2:19-CV-0128-RWS-JCF, 2021 WL 11708658, at *2 (N.D. Ga. Mar. 10, 2021), *report and recommendation adopted*, No. 2:19-CV-128-RWS, 2021 WL 11708184 (N.D. Ga. Apr. 1, 2021) (*citing Weiland v. Palm Beach Cnty. Sheriff's Off.*, 792 F.3d 1313, 1323 (11th Cir. 2015)) (noting that a complaint is deficient where it asserts multiple claims against multiple defendants without specifying which of the defendants are responsible for the acts or omissions, or which of the defendants the claim is brought against)). A complaint may not survive a 12(b)(6) motion where it fails to connect each defendant to any facts indicating that they committed any specific unlawful acts. *Bobby Butler v. Georgia*, No. 1:21-CV-01589-SCJ, 2022 WL 274392, at *8 (N.D. Ga. Jan. 24, 2022), *aff'd sub nom. Butler v. Georgia*, No. 22-10291, 2022 WL 17484910 (11th Cir. Dec. 7, 2022).

Moreover, a court evaluating Section 1983 claims must generally accord official conduct with a presumption of legitimacy. *Dalrymple v. Reno*, 334 F.3d 991, 996 (11th Cir. 2003); *Gonzalez v. Reno*, 325 F.3d 1228, 1235 (11th Cir. 2003). A Section 1983 complaint will be dismissed as insufficient where its allegations are vague and conclusory. *Dalrymple*, 334 F.3d at 996; *Gonzalez*, 325 F.3d at 1235.

ii. Plaintiff's Privileges and Immunities Claim Should be Dismissed

The Privileges and Immunities Clause provides that the "Citizens of each State shall be entitled to all Privileges and Immunities of Citizens in the several States." *Supreme Court of Virginia v. Friedman*, 487 U.S. 59, 64 (1988). The provision was designed "to place the citizens of each State upon the same footing with citizens of other States, so far as the advantages resulting from citizenship in those States are concerned." *Toomer v. Witsell*, 334 U.S. 385, 395 (1948) (the Clause "was designed to insure to a citizen of State A who ventures into State B the same privileges which the citizens of State B enjoy"). The Clause "thus establishes a norm of comity without specifying the particular subjects as to which citizens of one State coming within the jurisdiction of another are guaranteed equality of treatment." *Friedman*, 487 U.S. at 64 (1988). Instead, "[i]t has been left to the Supreme Court and lower courts to define the scope of the Privileges and Immunities Clause, as 'its contours ... are not well developed.'" *McBurney v. Young*, 667 F.3d 454, 462 (4th Cir. 2012), *aff'd*, 569 U.S. 221 (2013) (citation omitted). However, the "fundamental rights" protected under the Clause are "much narrower" than those protected by other constitutional provisions. *Id*. They cover only "those 'privileges' and 'immunities' bearing upon the vitality of the Nation as a single entity." *Id.* at 462-63. Notwithstanding, "states are permitted to distinguish between residents and

nonresidents so long as those distinctions do not 'hinder the formation, the purpose, or the development of a single Union of those States.'" *Id.* at 462.

Review of a claim under the Clause is a two-step process. First, the court must determine whether the right at issue is fundamental to the promotion of interstate harmony. *United Building and Construction Trades Council of Camden County and Vicinity v. Mayor of Camden*, 465 U.S. 208, 218 (1984). Second, the court must review the purpose of the state's action and determine whether there is a "substantial reason" for discrimination against out-of-state residents. *Id.* Under this standard, Plaintiff's claim cannot survive.

1. The Right to Direct Public Employment by a State Actor Like Penn State is Not a Privilege or Fundamental Right Protected by the Privileges and Immunities Clause

Plaintiff's claim fails because an individual does not have a fundamental right to direct public employment by a state actor protected by the Clause. *A.L. Blades & Sons, Inc. v. Yerusalim*, 121 F.3d 865, 871 (3d Cir. 1997); *see Salem Blue Collar Workers Ass'n v. City of Salem*, 33 F.3d 265, 270 (3d Cir. 1994), *cert. denied*, 513 U.S. 1152 (1995). While the Clause safeguards the ability of citizens to pursue a common calling, it does not convert a state's discretionary public hiring decisions into constitutionally protected privileges or a fundamental right. *United Bldg. & Const.*, 465 U.S. at 219; *McBurney*, 667 F.3d at 463. Accordingly, a challenge to a state actor's direct employment policy under the Clause fails as a matter of law.

Penn State, as a state-related institution, is a state actor for purposes of Section 1983 claims. *Bradshaw v. Pennsylvania State Univ.*, No. CIV.A. 10-4839, 2011 WL 1288681, at *1 (E.D. Pa. Apr. 5, 2011); *Nicholas v. Pa. State Univ.,* 227 F.3d 133 (3d Cir. 2000). Because direct public employment by a state actor such as Penn State is not a fundamental right protected by the Clause, Plaintiff cannot satisfy the first step of the Privileges and Immunities Clause test—that the Policy implicates a privilege or fundamental right. This is fatal to Plaintiff's claim.

The Court should therefore dismiss Plaintiff's Complaint with prejudice.

2. Penn State's Policy Survives Scrutiny Under the Second Step of the Privileges and Immunities Clause Analysis Because it is Supported by a "Substantial Reason" and Bears a "Close Relation" to that Reason.

Even if a policy concerns a fundamental right, which in this case it does not, it will still be upheld if there is a (1) "substantial reason" for the discrimination, and (2) "the degree of discrimination bears a close relation to such reasons." *Friedman*, 487 U.S. at 67. The Clause "[d]oes not preclude disparity of treatment in the many situations where there are perfectly valid independent reasons for it." *Toomer*, 334 U.S. at 396. As part of that analysis, courts consider the extent to which nonresidents are a "peculiar source of the evil at which the statute is aimed." *Id.* at 398. The Supreme Court has made clear that constitutionally protected privileges and immunities are burdened only when challenged laws were enacted for a protectionist purpose. *See McBurney*, 569 U.S. at 227. Accordingly, a state may discriminate

against nonresidents if the state has valid reasons for the discrimination and the discrimination has a close relationship with the state's objectives. *Toomer,* 334 U.S. at 398. Every inquiry under the Clause "must ... be conducted with due regard for the principal that the States should have considerable leeway in analyzing local evils and in prescribing appropriate cures." *Id.* at 396.

Penn State's Policy is supported by substantial, non-protectionist reasons based on legal and administrative challenges. States have varying (and sometimes conflicting) laws and rules governing employment issues, including, to name a few: payroll, wage and hour, taxes and withholdings, benefits, leave, hiring, termination, and training. Managing these differences is costly and complex, not to mention onerous in terms of monitoring updates and changes in the law across numerous states. By hiring from limited states, Penn State can better handle these compliance demands and align resources effectively. Further, Penn State's Policy does not limit applicants solely to Pennsylvania residents—it simply limits the total states from which it hires. There is nothing unusual about Penn State's Policy, and it is common practice for employers to limit the states from which they hire applicants.

For example, payroll and pay frequency rules vary state by state.[4] As a result, an employer is required to manage its payroll systems, calendaring, and audit

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[4] *See* U.S. Department of Labor, Wage and Hour Division, State Payday Requirements (January 1, 2023), last accessed December 29, 2025, *available at* https://www.dol.gov/agencies/whd/state/payday.

controls to meet differing disbursement timelines, wage statement content mandates,[5] and penalties for noncompliance.[6] Maintaining compliant, state-specific payroll processes and wage notices for all 50 states is operationally demanding and risk-laden. Limiting the number of hiring states reduces those burdens.

In addition, state and local tax and withholding obligations require employer registrations, unemployment insurance accounts, disability and paid family leave remittances where applicable, and continuous updates as revenue agencies change rates, bases, and e-filing protocols.[7] Fifty-state payroll tax compliance can be burdensome, requiring dedicated tax expertise and technology. Penn State's Policy limiting the states it hires from is a reasonable method to control ongoing tax compliance costs and exposure.

Moreover, benefits and healthcare mandates, including state-level insurance and continuation requirements, as well as retirement-plan mandates in certain

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[5] *See e.g.* Illinois Wage Payment and Collection Act 820 ILCS 115/10(a)-(d); Colorado Wage Act § 8-4-101, et seq.; New York State Labor Law §195.3; *see generally* ADP Pay Statement Requirements, (November 1, 2025), last accessed December 31, 2025, *available at* https://www.adp.com/-/media/pdf/pay-frequency-and-pay-timing-chart.pdf.

[6] *See e.g.* NYLL Section 198(1-a) (for a first violation of the pay frequency law, an employer may be subject to damages in the amount of 100% of the lost interest due to an aggrieved employee for delayed payment of wages. The New York State Department of Labor may impose a 15% surcharge on unsatisfied wage judgments).

[7] National Conference of State Legislatures, State and Local Tax Considerations of Remote Work Arrangements (July 2023), last accessed December 30, 2025, *available at* https://documents.ncsl.org/wwwncsl/State-Federal/NCSL-SALT-Remote-Work-Considerations-White-Paper-2023.pdf.

jurisdictions create conflicting eligibility, notice, funding, and reporting regimes.[8] Hiring from all fifty states would require Penn State to develop an expansive state-specific administrative system, increasing compliance risks and management costs. A limited state footprint mitigates these burdens.

Further, leave laws and paid time off vary widely, including accrual, carryover, frontloading, notice, documentation, and payout rules.[9] Administering compliant leave programs across many jurisdictions demands constant legal tracking, system rule changes, and supervisor training. Penn State's Policy reduces that complexity.

Finally, hiring and termination regulations differ across jurisdictions (e.g., offer content, background checks, drug testing, restrictive covenants, separation pay,[10] and final wage timing), necessitating state-specific templates, workflows, and

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[8] Melissa Stein, JD, Brightmine, Leave Laws by State (October 22, 2025), last accessed December 31, 2025, *available at* https://www.brightmine.com/us/resources/hr-compliance/employee-leaves/leave-laws-by-state-chart/#:~:text=Family%20and%20medical%20leave%20(under%20kin%20care%20leave%20law),employer%27s%20existing%20sick%20leave%20policy.

[9] National Conference of State Legislatures, State and Local Tax Considerations of Remote Work Arrangements, pp. 27-28 (July 2023), last accessed December 30, 2025, *available at* https://documents.ncsl.org/wwwncsl/State-Federal/NCSL-SALT-Remote-Work-Considerations-White-Paper-2023.pdf.

[10] See Paycor, Workforce Management, Final Paycheck Laws by State in 2026, last accessed on December 29, 2025, *available at* https://www.paycor.com/resource-center/articles/final-paycheck-laws-by-state/.

training for recruiters and managers. A narrowed set of hiring states allows standardized, reliable procedures consistent with institutional resources.

Accordingly, restricting hiring to a defined set of states where compliance can be managed effectively is substantially related to, and justified by, the apparent complexities and costs of multi-jurisdictional employment compliance. *See Toomer,* 334 U.S. at 398. The Policy aligns Penn State's legal obligations as an employer with its operational capacity and mitigates compliance risk, administrative overhead, and cost exposure inherent in a nationwide employment program. *Id.* As such, even *if* Penn State's Policy implicated a privilege or fundamental right protected by the Clause (it does not), the Policy survives scrutiny and Plaintiff's Privileges and Immunities claim should be dismissed with prejudice. *Dalrymple v. Reno*, 334 F.3d 991, 996 (11th Cir. 2003); *Gonzalez v. Reno*, 325 F.3d 1228, 1235 (11th Cir. 2003).

3. Plaintiff Does Not Allege Facts to Support Any Liability on the Part of the PSU Board or Individual Defendants

Even if this Court were to find that the Complaint states a claim for a violation of the Privileges and Immunities Clause, which it does not, the Complaint should nonetheless be dismissed because it fails to state with the required specificity allegations against each of the Defendants to sustain a Section 1983 claim. The Complaint names the PSU Board and the Individual Defendants as defendants, but Plaintiff makes no sufficient specific allegations against them.

First, Plaintiff alleges the PSU Board is the body which "possesses ultimate authority to approve, adopt, and maintain University-wide policies, including the residency restriction challenged herein. At all relevant times, the Board acted under color of state law." *Compl.*, ¶ 9. In conclusory fashion, Plaintiff further alleges that the PSU Board, "acting under color of state law, promulgated and maintains the challenged policy." *Id.*, ¶ 25. The Eleventh Circuit has held that to plead sufficiently specific information for the court to conclude that the defendants have violated a constitutional right, the plaintiff must allege specific acts on the part of all the defendants. *Mercer*, 134 F.3d at 1070–71. Plaintiff's pleading fails to do so as it relates to the PSU Board.

Similarly, as it relates to the Individual Defendants, Plaintiff's allegations are equally threadbare and insufficient to satisfy the requisite pleading standard. Plaintiff claims in a conclusory manner that President Bendapudi is "responsible for approving and enforcing University-wide policies, including the challenged 'Notice to Out-of-State Applicants.'" *Compl.*, ¶ 19. As for Wilkes, Plaintiff claims she "oversees the administration of University hiring practices and is responsible for implementing the exclusionary policy challenged herein." *Id.*, ¶ 20. These non-specific allegations do not suffice to state a viable claim against either Individual Defendant. *Mercer*, 134 F.3d at 1070-71.

Inasmuch as there are no claims asserted against them on any Counts, and they are unnecessary for any of the relief sought by Plaintiff, the PSU Board and the Individual Defendants should be dismissed from this lawsuit entirely, with prejudice.

IV. CONCLUSION

Based on the foregoing, Defendants request that Plaintiff's Complaint be dismissed with prejudice as to all Defendants and the Court grant such other and further relief as may be required.

Date: January 20, 2026

Respectfully Submitted,

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